

STATE OF NEW YORK

10393--A

Cal. No. 337

IN ASSEMBLY

March 3, 2026

Introduced by M. of A. LUNSFORD -- read once and referred to the Committee on Codes -- reported from committee, advanced to a third reading, amended and ordered reprinted, retaining its place on the order of third reading

AN ACT to amend the civil practice law and rules, in relation to defining satisfaction of judgment and authorizing satisfactions to be filed on affirmation

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 5020 of the civil practice law and rules, as
2 amended by chapter 1051 of the laws of 1969, subdivision (a) as amended
3 by chapter 148 of the laws of 1979, subdivision (b) as amended by chapter 41 of the laws of 1977, subdivision (c) as amended by chapter 227 of
4 the laws of 2020, and subdivision (d) as added by chapter 601 of the
5 laws of 1974, is amended to read as follows:

6 § 5020. Satisfaction-piece. (a) As used in this section, the term
7 "satisfaction" shall mean (i) the receipt and clearance of funds in
8 satisfaction of a judgment by the judgment creditor or the attorney for
9 the judgment creditor, or (ii) receipt by the judgment creditor or the
10 attorney for the judgment creditor of notice from a sheriff that a judgment is satisfied.

11 (b) Generally. When a person entitled to enforce a judgment receives
12 satisfaction or partial satisfaction of the judgment, [~~he~~] such person
13 shall execute and file with the proper clerk pursuant to subdivision (a)
14 of section 5021, a satisfaction-piece or partial satisfaction-piece
15 [~~acknowledged in the form required to entitle a deed to be recorded~~]
16 affirmed consistently with rule 2106, which shall set forth the book and
17 page where the judgment is docketed. A copy of the satisfaction-piece or
18 partial satisfaction-piece filed with the clerk shall be mailed to the
19 judgment debtor by the person entitled to enforce the judgment within
20 ten days after the date of filing.

21 [(b)] (c) Attorney of record. Within [~~ten~~] twenty years after the
22 entry of a judgment the attorney of record or the attorney named on the
23 docket for the judgment creditor may execute a satisfaction-piece or a
24

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

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1 partial satisfaction-piece, but if [~~his~~] such attorney's authority was
2 revoked before it was executed, the judgment may nevertheless be
3 enforced against a person who had actual notice of the revocation before
4 a payment on the judgment was made or a purchase of property bound by it
5 was effected.

6 [~~(e)~~] (d) When a judgment for less than five thousand dollars is fully
7 satisfied, if the person required to execute and file with the proper
8 clerk pursuant to subdivisions [~~(a) and (d)~~] (b) and (e) of this section
9 fails or refuses to do so within twenty business days after receiving
10 full satisfaction, then the judgment creditor shall be subject to a
11 penalty of one hundred dollars recoverable by the judgment debtor pursu-
12 ant to section [~~seventy-two hundred two of this chapter~~] 7202 or article
13 eighteen of either the New York [~~City~~] city civil court act, uniform
14 district court act or uniform city court act. When a judgment for five
15 thousand dollars or more is fully satisfied, if the person required to
16 execute and file with the proper clerk pursuant to subdivisions [~~(a) and~~
17 ~~(d)~~] (b) and (e) of this section fails or refuses to do so within twenty
18 business days after receiving full satisfaction, then the judgment cred-
19 itor shall be subject to a penalty of five hundred dollars recoverable
20 by the judgment debtor pursuant to section [~~seventy-two hundred two of~~
21 ~~this chapter~~] 7202 or article eighteen of either the New York city civil
22 court act, uniform district court act or uniform city court act;
23 provided, however, that such penalties shall not be recoverable when a
24 city with a population greater than one million persons is the judgment
25 creditor, unless such judgment creditor shall fail to execute and file a
26 satisfaction-piece with the proper clerk pursuant to subdivisions [~~(a)~~
27 ~~and (d)~~] (b) and (e) of this section within twenty business days after
28 having been served by the judgment debtor with a written demand therefor
29 by certified mail, return receipt requested.

30 [~~(d)~~] (e) Where a transcript of the docket of a judgment has been
31 docketed in any other county of the state pursuant to subdivision (a) of
32 section 5018, the person required to execute and file with the proper
33 clerk pursuant to subdivision [~~(a) hereof~~] (b) of this section shall,
34 upon receiving full satisfaction, file a certificate of the clerk of the
35 county in which the judgment was entered, in accordance with subdivision
36 (c) of section 5021, with the clerks of all other counties in which such
37 judgment has been docketed.

38 § 2. This act shall take effect on the sixtieth day after it shall
39 have become a law.